

		Defendants were served with the Summons and Complaint on 4/22/2026 per Proof of Service of Summons (ROA 36 & 40). Defendants filed this Motion to Dismiss (ROA 25) as their first filing with this Court. A Motion to Dismiss is an improper responsive pleading filed after being served with a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant's Motion to Dismiss is DENIED. The Defendant is to file a responsive pleading consistent with California Code of Civil Procedure § 1170(a) within 5 calendar days of receiving notice of the Court's ruling. The Plaintiff is to provide notice of the Court's ruling.
15	30-2025-01532461 Ngan Nguyen vs. Jesse M. Rickard, Trustee of the J&L Rickard 2006 Family Trust	As to the Discovery Motions, all other matters will be heard in Court: The Court has read and considered the Plaintiff's Motions: ROA 53, ROA 54, and ROA 55. The Plaintiff's Motion to Compel Responses to Form Interrogatories-Unlawful Detainer (Set One) is GRANTED. Defendant is hereby ordered to serve full and complete verified responses, without objection to Form Interrogatories-Unlawful Detainer, within 5 days of service of notice hereto. IT IS ORDERED that the Plaintiff's Motion to Deem Admitted All Matters In Plaintiff's Requests for Admission (Set One) be and hereby is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendant on April 3, 2026, be deemed admitted. The Plaintiff's Motion to Compel Responses to Requests for Production of Documents (Set One) is GRANTED. Defendant is hereby ordered to serve full and complete verified responses, without objection to Plaintiff's Request for Production of Documents (Set One), within 5 days of service of notice hereto. The Court orders the Defendant's Counsel, Ayinde Jones, SBN3 283668, forthwith to pay sanctions in the amount of \$1,125 to the Plaintiff. This sum shall be made payable to "AWB Law, P.C." within 5 business days and shall be delivered to 2040 Main Street, Suite 500, Irvine, CA 92614. The Plaintiff is ordered to provide electronic notice of this Court's order.
17	30-2026-01547207 Coach Royal-003, L.P. DBA Coach Royal Mobilehome Park v. Marquez	The Court has read and considered the Defendant's Notice of Intention to Move for New Trial and to Vacate Judgment; Combined Motion Under Code of Civil Procedure § 657 and 663 (ROA 95) and Plaintiff's Opposition (ROA 106).

	Counsel did not request a detailed statement of decision. After taking the matter under submission at the close of trial, the Court issued its ruling by minute order. Plaintiff met its burden of proof to establish the unlawful detainer action. The burden then shifted to Defendants to establish any affirmative defenses. Defendants' characterization of the testimony is not supported by the trial record. Ms. Garcia testified that, prior to her September conversation with Ms. Marquez, it had already been announced to the community that Ms. Garcia was the new resident manager of the mobile home park. Ms. Garcia further testified that three separate 3/90-day notices were served between September and December 2025. The first 3/90-day notice to pay rent was served in September 2025. Ms. Garcia testified that she spoke with Ms. Marquez at that time and advised her that the notices needed to be taken seriously and that the Park would no longer accept late rental payments. A second 3/90-day notice was served in November 2025 due to late rent, and Ms. Marquez complied with that notice by paying within the three-day period. In December 2025, Defendants were served with a third 3/90-day notice. Defendants did not tender payment within the statutory three-day period, and the matter was thereafter referred to counsel. The evidence established that Plaintiff served notices complying with applicable law, thereby providing Defendants an opportunity to cure the lease forfeiture arising from their failure to timely pay rent under the lease agreement. Ms. Marquez was expressly advised in September 2025 that future late payments would not be accepted. When Defendants failed to timely pay rent in November 2025, Plaintiff served the applicable 3/90-day notice, which Defendants cured within the statutory period. When Defendants again failed to timely pay rent in December 2025, Plaintiff served the applicable 3/90-day notice, but Defendants failed to comply within the statutory period. This action was initiated as a result of Defendants' noncompliance with the December 2025 notice. Ms. Marquez testified that, upon receiving the December 2025 notice, she understood that she would need to vacate the property and attempt to sell the mobile home. She testified that the highest offer she received was approximately \$50,000, but that the prospective purchaser ultimately withdrew. Ms. Marquez also testified that she received additional offers, including one for \$5,000, which she declined as inadequate. Ms. Marquez further testified that the updated title for the mobile home had been provided in May 2025 and that since then, Defendants had received three separate 3/60-day notices from the Park. She additionally testified that there had been "a lot of evictions in the park" since September 2025 and that she "felt targeted by the park." As Plaintiff correctly argued, Defendants cited no legal authority establishing that a tenant may cure a failure to timely pay rent after expiration of the statutory three-day period merely by paying a late fee. Plaintiff further noted that both the lease agreement and the 3/90-day notice contain express non-waiver provisions. Plaintiff also cited California Civil Code section 798.56(e)(5) in support of her position.
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		Defendants provided no legal authority at trial supporting their arguments. Counsel primarily argued that the statutory 60-day period to sell the mobile home was unfair. However, that timeline is established by California law and was not uniquely imposed upon Defendants by Plaintiff. The evidence established that Defendants repeatedly failed to timely pay rent, thereby triggering the statutory notices, and that Defendants failed to cure the December 2025 notice within the required three-day period. Ms. Garcia also testified that no prospective purchaser was ever presented to the Park and that no prospective purchaser submitted an application for tenancy approval. Accordingly, Defendants failed to meet their burden under California Code of Civil Procedure sections 657 and 663. The Court DENIES the Defendant's request to vacate the judgment and DENIES the request for a new trial. The Plaintiff is ordered to give notice of the Court's ruling.
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